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CASE #	CASE NAME	HEARING NAME
CVRI2402839	BARTELS vs REGENTS OF THE UNIVERSITY OF CALIFORNIA	MOTION FOR RELIEF FROM DEFENDANT WATKINS DEMURRER UNDER CCP 473 (B)

Tentative Ruling:

Watkins was ordered dismissed from the case after her demurrer was sustained without leave to amend.

Plaintiff argues that relief under CCP § 473(b) is warranted because Watkins introduced factual characterizations of her own role in her demurrer that were erroneously convincing the Court to accept these erroneous facts and grant the motion. This motion is not brought on Plaintiff's mistake, inadvertence, or surprise. Instead, it is brought on allegedly misleading or false statements made by Watkins in her moving papers. This conduct does not support CCP § 473(b) relief, which must be based on mistake, inadvertence, surprise, or excusable neglect on the part of the moving party.

Additionally, a demurrer looks only at whether the pleading states facts sufficient to support a cause of action. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) It does not look at allegations made outside of the pleadings. (*Ibid.*) The appropriateness of the Court's ruling was challenged by Plaintiff via a writ. The writ was denied by the Court of Appeal. Review of the appellate opinion was denied by the California Supreme Court. As such, if this is an attempt to seek reconsideration of the Court's ruling on the demurrer, this is inappropriate in light of these rulings and CCP § 1008, which requires such a motion to be brought within 10 days of a notice of ruling (which was served on 4/7/25). **As such, the motion is denied.**

Further, the request for leave to amend fails to comply with California Rules of Court. **The court denies the request for leave to amend.**

Watkins argues that the Court can set an order to show cause regarding sanctions for Plaintiff's improper motion. **The court declines setting an order to show cause against Bartels at this time.**

Moving party Bartels is ordered to give notice of the ruling.